



Book	Policy Manual
Section	Policies for the Board ~ April 24, 2019
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7540.02 - **WEB ACCESSIBILITY, CONTENT, APPS, AND SERVICES ~~AND APPS~~**

A. **Creating Content for Web Pages/Sites/Services and, Apps and Services**

The Board of Education authorizes staff members (☒) and students to create ~~web~~-content, apps and ~~web~~-services (see Bylaw 0100 Definitions) that will be hosted by the Board on its servers or District-affiliated servers and or published on the Internet.

The ~~web~~-content, apps, and services ~~and apps~~ must comply with State and Federal law (e.g., copyright laws, Children's Internet Protection Act (CIPA), Section 504 of the Rehabilitation Act of 1973 (Section 504), Americans with Disabilities Act (ADA), and Children's Online Privacy Protection Act (COPPA)), and reflect the professional image/brand of the District, its employees, and students. ~~Web-~~Content, apps, and services ~~and apps~~ must be consistent with the Board's Mission Statement and staff-created ~~web~~-content, apps, and services ~~and apps~~ are subject to prior review and approval of the Superintendent before being published on the Internet and/or ~~utilized~~used with students.

[NOTE: CHOOSE ~~EITHER OR ONE~~, BOTH, OR NONE OF THE FOLLOWING OPTIONS.]

☒ Student-created ~~web~~-content, apps, and services ~~and apps~~ are subject to Policy 5722 - School-Sponsored Student Publications and Productions.

☐ The creation of ~~web~~-content, apps, and services ~~and apps~~ by students must be done under the supervision of a professional staff member.

[END OF OPTIONS]

B. **Purpose of Content of District Web Pages/Sites, Apps, and Services**

The purpose of ~~web~~-content, apps, and services ~~and apps~~ hosted by the Board on its servers or District-affiliated servers is to educate, inform, and communicate. The following criteria shall be used to guide the development of such ~~web~~-content, apps, and services ~~and apps~~:

1. **Educate**

Content should be suitable for and usable by students and teachers to support the curriculum and the Board's Objectives as listed in the Board's Strategic Plan.

2. **Inform**

Content may inform the community about the school, teachers, students, or departments, including information about curriculum, events, class projects, student activities, and departmental policies.

3. **Communicate**

Content may communicate information about the plans, policies and operations of the District to members of the public and other persons who may be affected by District matters.

The information contained on the Board's website(s) should reflect and support the Board's Mission Statement, Educational Philosophy, and the School Improvement Process.

It is understood that the information placed on a staff member's website does not represent any official school document or any official position of the school district.

When the content includes a photograph or personally identifiable information relating to a student, the Board will abide by the provisions of Policy 8330 - Student Records.

~~All links included on the Board's website(s) or web services and apps must also meet the above criteria and comply with State and Federal law (e.g. copyright laws, CIPA, Section 504, ADA, and COPPA). Nothing in this paragraph shall prevent the District from linking the Board's website(s) to 1) recognized news/media outlets (e.g., local newspapers' web sites, local television stations' web sites) or 2) to websites, services and/or apps that are developed and hosted by outside commercial vendors pursuant to a contract with the Board. The Board recognizes that such third party web sites may not contain age appropriate advertisements that are consistent with the requirements of Policy 9700.01, AG 9700B, and State and Federal law.~~

Under no circumstances is District-created ~~web~~-content, apps, and services ~~or apps~~, to be used for commercial purposes, advertising, political lobbying or to provide financial gains for any individual. Included in this prohibition is the fact no ~~web~~-content contained on the District's web site may: (1) include statements or other items that support or oppose a candidate for public office, the investigation, prosecution or recall of a public official, or passage of a tax levy or bond issue; (2) link to a web site of another organization if the other web site includes such a message; or (3) communicate information that supports or opposes any labor organization or any action by, on behalf of, or against any labor organization.

~~[] Under no circumstances is staff member created web content, apps, and services or apps, including personal web pages/sites, to be used to post student progress reports, grades, class assignments, or any other similar class related material. Employees are required to use the Board specified website, apps, or service or app (e.g., _____ [Progressbook]) for the purpose of conveying information to students and/or parents.~~

[X] Staff members are prohibited from requiring students to go to the staff member's personal web pages/sites (including, but not limited to, their Facebook, Instagram, or Pinterest pages) to check grades, obtain class assignments and/or class-related materials, and/or to turn in assignments.

~~[] If a staff member creates web content, apps, and services or apps related to his/her class, it must be hosted on the Board's server or a District-affiliated server.~~

~~[] Unless the web content, apps, and services or app contains student personally identifiable information, Board websites, apps, and services or apps that are created by students and/or staff members that are posted on the Internet should not be password protected or otherwise contain restricted access features, whereby only employees, student(s), or other limited groups of people can access the site. Community members, parents, employees, staff, students, and other web site users will generally be given full access to the Board's website(s), apps, and services and apps.~~

Web content, apps, and services ~~and apps~~ should reflect an understanding that both internal and external audiences will be viewing the information.

School ~~website(s); web pages/sites, apps, and~~ services ~~and apps~~ must be located on Board-owned or District-affiliated servers.

The Superintendent shall prepare administrative guidelines defining the rules and standards applicable to the use of the Board's web site and the creation of ~~web~~-content, apps, and services ~~and apps~~ by staff (**X**) and students.

The Board retains all proprietary rights related to the design of ~~web~~-content, apps, and services ~~and apps~~ that are hosted on Board-owned or District-affiliated servers, absent written agreement to the contrary.

Students who want their class work to be displayed on the Board's web site must have written parent permission and expressly license its display without cost to the Board.

Prior written parental permission is necessary for a student to be identified by name on the Board's web site.

C. Website Accessibility

The District is committed to providing persons with disabilities an opportunity equal to that of persons without disabilities to participate in the District's programs, benefits, and services, including those delivered through electronic and information technology, except where doing so would impose an undue burden or create a fundamental alteration. The District is further committed to ensuring persons with disabilities are able to acquire the same information, engage in the same interactions, and enjoy the same benefits and services within the same timeframe as persons without a disability, with substantially equivalent ease of use; that they are not excluded from participation in, denied the benefits of, or otherwise subjected to discrimination in any District programs, services, and activities delivered online, as required by Section 504 and Title II of the ADA and their implementing regulations; and that they receive effective communication of the District's programs, services, and activities delivered online.

The District adopts this policy to fulfill this commitment and affirm its intention to comply with the requirements of Section 504 of the Rehabilitation Act of 1973, 29 U.S.C. 794, 34 C.F.R. Part 104, Title II of the Americans With Disabilities Act of 1990, 42 U.S.C. 12131, and 28 C.F.R. Part 35 in all respects.

1. **Technical Standards**

The District will adhere to the technical standards of compliance identified at [Insert link to the District's website]. The District measures the accessibility of online content and functionality according to the World Wide Web Consortium's Web Content Accessibility Guidelines (WCAG) 2.0 Level AA, and the Web Accessibility Initiative - Accessible Rich Internet Applications Suite (WAI-ARIA 1.1) for web content. (.) [insert another acceptable standard selected by the District].

[DRAFTING NOTE: OCR recommends WCAG 2.0 Level AA.]

2. **Web Accessibility Coordinator**

The Board designates its (X-) Section 504/ADA Compliance Coordinator(s) (.) Technology Director (.) as the District's web accessibility coordinator(s). That individual(s) is responsible for coordinating and implementing this policy.

[.] The Board commits to providing the Web Accessibility Coordinator with sufficient resources and authority to coordinate and implement this policy and any corresponding guideline(s) subject to oversight by the Superintendent and the Board.

[SELECT OPTION #1 OR OPTION #2]

[X] [OPTION 1]

See Board Policy 2260.01 for the Section 504/ADA Compliance Coordinator(s)' contact information.

[.] [OPTION #2]

The District's web accessibility coordinator(s) can be reached at . [Insert name or title, address, e-mail, phone]

3. **Third Party Content**

Links included on the Board's website(s), services, and apps that pertain to its programs, benefits, and/or services must also meet the above criteria and comply with State and Federal law (e.g. copyright laws, CIPA, Section 504, ADA, and COPPA). While the District strives to provide access through its website to online content provided or developed by third parties (including vendors, video-sharing websites, and other sources of online content) that is in an accessible format, that is not always feasible. The District's administrators and staff, however, are aware of this requirement with respect to the selection of online content provided to students. The District's web accessibility coordinator or his/her designees will vet online content available on its website that is related to the District's programs, benefits, and/or services for compliance with this criteria for all new content placed on the District's website after adoption of this policy.

Nothing in the preceding paragraph, however, shall prevent the District from including links on the Board's website(s) to:

- a. recognized news/media outlets (e.g., local newspapers' websites, local television stations' websites); or

- b. websites, services, and/or apps that are developed and hosted by outside vendors or organizations that are not part of the District's program, benefits, or services.

The Board recognizes that such third party websites may not contain age-appropriate advertisements that are consistent with the requirements of Policy 9700.01, AG 9700B, and State and Federal law.

4. **Regular Audits**

The District, under the direction of the web accessibility coordinator(s) or his/her/their designees, will, at regular intervals, audit the District's online content and measure this content against the technical standards adopted above.

[] This audit will occur () **at least annually.** () **no less than once every two (2) years.**

If problems are identified through the audit, such problems will be documented, evaluated, and, if necessary, remediated within a reasonable period of time.

5. **Reporting Concerns or Possible Violations**

If any student, prospective student, employee, guest, or visitor believes that the District has violated the technical standards in its online content, s/he may contact the web accessibility coordinator with any accessibility concerns. S/He may also file a formal complaint utilizing the procedures set out in Board Policy 2260 and Policy 2260.01 relating to Section 504 and Title II.

D. **Instructional Use of Apps and Web-Services and Apps**

The Board authorizes the use of **web-apps and** services ~~and/or apps~~ to supplement and enhance learning opportunities for students either in the classroom or for extended learning outside the classroom.

[SELECT OPTION #1 or #2]

[] [OPTION #1]

~~The Board requires the () Superintendent () _____ pre-approve each webapp and/or service and/or app that a teacher intends to use to supplement and enhance student learning. To be approved, the web app and/or service or app must have a FERPA-compliant privacy policy, as well as comply with all requirements of the Children's Online Privacy Protection Act (COPPA) and the Children's Internet Protection Act (CIPA) () and Section 504 and the ADA.~~

[END OF OPTION #1]

[X] [OPTION #2]

A teacher who elects to supplement and enhance student learning through the use of **web-app and/or** services ~~and/or apps~~ is responsible for verifying/certifying to the **(X)** Superintendent () _____ that the **web-app and/or** service ~~or app~~ has a FERPA-compliant privacy policy, and it complies with all requirements of the ~~Children's Online Privacy Protection Act (COPPA)~~ and ~~the Children's Internet Protection Act (CIPA)~~ **(X)** and Section 504 and the ADA.

[END OF OPTION #2]

The Board further requires

(X) the use of a Board-issued e-mail address in the login process.

() prior written parental permission to use a student's personal e-mail address in the login process.

E. **Training**

The District will provide () annual (X) periodic training for its employees who are responsible for creating or distributing information with online content so that these employees are aware of this Policy and understand their roles and responsibilities with respect to web design, documents and multimedia content.

[X] Such training shall be facilitated by an individual with sufficient knowledge, skill and experience to understand and employ the technical standards set forth in Board policies and administrative guideline(s).

F. **One-Way Communication Using District Content, Apps, and Services**

The District is authorized to use web pages/sites, apps and services to promote school activities and inform stakeholders

and the general public about District news and operations.

Such communications constitute public records that will be archived.

When the Board or Superintendent designates communications distributed via District web pages/sites, apps and services to be one-way communication, public comments are not solicited or desired, and the website, app or service is to be considered a nonpublic forum.

If the District uses a apps and web services that do es not allow the District to block or deactivate public comments (e.g., Facebook, which does not allow comments to be turned-off, or Twitter, which does not permit users to disable private messages or mentions/replies), the District's use of that apps and web service will be subject to Policy 7544 - Use of Social Media, unless the District is able to automatically withhold all public comments.

If unsolicited public comments can be automatically withheld, the District will retain the comments in accordance with its adopted record retention schedule (see AP 8310A – Requests for Public Records and AG 8310E - Record Retention and Disposal), but it will not review or consider those comments.

[DRAFTING NOTE: Districts are advised to adopt a new category of records that covers such “hidden public comments” on social media. Unless dictated by State law, retention periods established by the District for such unsolicited communications should be limited.]

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Legal

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